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NO CLAIM CERTIFICATE FOR RELEASE OF FINAL PAYMENT

[***Note: The Contractor shall submit this certificate in the format provided herein below, along with the Final Invoice to claim the final payment under the SO Documents, if applicable.***]

SO : _____

[*insert SO number and date of issuance of the SO*]

Project : _____

[*insert name and details of the Project*]

1. _____ [*insert name of the Contractor*], having its registered office at _____ [*insert registered office address of the Contractor*] ("**Contractor**"), hereby releases and forever discharges _____ [*insert name of the Employer*] ("**Employer**"), of all claims, demands and dues, present or in future, of whatsoever nature and arising in any manner, out of or in relation to the works and services performed by the Contractor under the SO Documents, except for: (i) _____ (_____) [*insert amount equivalent to the gross amount of the final invoice, in words and figures*] ("**Final Payment**"), payable in terms of the Final Invoice, which shall constitute the final payment against all dues owed to the Contractor by the Employer under the SO Documents; and (ii) any amount due to the Contractor under the SO Documents which may have been retained by the Employer in terms of the SO Documents ("**Retention Amount**").

2. In consideration of the Employer agreeing to make the Final Payment and to release the Retention Amount, the Contractor hereby represents, warrants and covenants that:

   (i) all measurements incorporated and certified in all invoices, including the Final Invoice, are agreed upon by the Contractor;

   (ii) the Contractor has made full payment to all the personnel engaged for performance of the Scope of Work, including its Sub-Contractors, in lieu of the work and services performed under the SO Documents and such personnel shall not have any recourse to the Employer for any matter whatsoever; and

   (iii) the Contractor unconditionally releases and forever discharges all premises and property of the Employer from all claims, demands and dues of any nature outstanding from the Employer and hereby agrees that all sums due or becoming due, all debts, accounts, damages, obligations, claims and demands of every nature and kind whatsoever, in any manner, arising out of or related to works and services performed by the Contractor, have been paid and satisfied in full by the Employer, except as set forth below:

   _____

   _____

   [***Note: Please specify any claims or amounts due that are excluded from the above provision. If there are no such claims or dues, then please specify 'None'.***]

3. The foregoing shall not relieve the Contractor of its obligations under the provisions of the SO Documents, which by their nature survive the completion of the work including any warranties, guarantees and indemnities that has been provided by the Contractor thereunder.

4. All capitalized terms used herein but not defined in this certificate will have the meaning ascribed to them in the relevant SO Documents.

Signature of authorized representative of the Contractor

Name :

Designation :

Date :

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UNDERTAKING FOR COMPLIANCE WITH LABOUR LAWS

[***Note: The Contractor shall undertake that it has complied with all applicable labour laws and submit an undertaking in respect thereof in this format, along with the Final Invoice.***]

I, _____ [*insert name*], the _____ [proprietor/partner/director] [*retain as relevant*] of _____ [*insert name of the Contractor*] ("**Contractor**"), hereby declare and undertake on behalf of the Contractor that the Contractor has complied with all relevant labour laws, including laws relating to contract labour, minimum wages, employment of personnel and sub-contractors, provident fund, health and safety, welfare of employees and and immigration.

I, on behalf of the Contractor, further declare and undertake that:

(i) the Contractor has complied with the provisions of the Contract Labour (Regulation and Abolition) Act, 1970, including any rules and regulations framed thereunder, and holds a valid licence in terms of the same;

(ii) the Contractor has paid wages for the period from _____ to _____ , to all personnel engaged by the Contractor for the performance of the Scope of Work, as per the wages prescribed under the applicable law and there are no outstanding dues payable to any personnel engaged by the Contractor;

(iii) all employees who are eligible in terms of the Employees Provident Fund and Miscellaneous Provisions Act, 1952 and the Employees State Insurance Act, 1948, are covered under the same and that the contributions have been deposited under the Contractor's company code numbers for the period specified in point (ii) above and that there is no outstanding amount owed to any employee whatsoever in this regard;

(iv) the Contractor is in compliance with Human Resources and Industrial Relations Requirements; and

(v) if any liability or dues, pertaining to any personnel engaged by the Contractor for the performance of the Scope of Work, is required to be discharged by the Employer, for any reason whatsoever, including due to any lapse or non-compliance by the Contractor, the Contractor will reimburse the Employer the same and the Employer will have the right to set off such dues from any amount payable to the Contractor under the SO Documents.

All capitalized terms used herein but not defined in this undertaking will have the meaning ascribed to them in the relevant SO Documents.

Signature of authorized representative of the Contractor

Name :

Designation :

Date :